i. Tender Schedule (submitted with Financial Bid) :
ii.Earnest Money Rs . . . . . .
iii. Signed copy of full tender/bid documents:
iv. Signed copy of drawings :
Nationality :

Signature: . . . . . .

Full Name of Bidder: . . . . . .

Place of Residence: . . . . . .

2. PRELIMINARY AGREEMENT FORMAT

PRELIMINARY AGREEMENT

Preliminary Agreement entered into on this . . . . . day of . . . . . (month) Two thousand and . . . .(year) between ***Assistant Engineer, LSGD Section Arookkutty*** for and on behalf of the Governor of Kerala (hereinafter called for the Government) of the one part and Sri . . . . . .(here enter full name and address of the Bidder) hereinafter called the Bidder of the other part for the execution of the agreement as well as for the executionof the work . . . . . .

WHERE AS the Government invited tenders for the work of ***Annual Plan-Kuttisseri Kidesseri road rennovation in ward 2 Arookutty GP-220/2026-27-General Civil Work*** by Notification No . . . . . Dated . . . . . .in the . . . . . .

I/We undersigned hereby offer to construct the proposed work in strict accordance with the contract/bid document for the consideration to be calculated in terms of the priced schedule of quantities.

I/We undertake to complete the whole of the works as per the attached schedule from the date of issue of intimation by you that our tender has been accepted and upon being permitted to enter site. I/We further undertake that on failure, subject to the conditions of the contract relating to extension of time, I/We shall pay agreed `Liquidated Damages' for the period during which the

work shall remain incomplete.

I/We hereby deposit with you as Earnest money Rs. . . . . /- (Rupees . . . . . .) [carrying no interest] by means of online payment in the e-GP web site of Kerala in favour of . . . . . .(tender inviting authority) and I/We agree that this sum shall be forfeited in the event of the Employer accepting my/our tender and I/We fail to take up the contract when called upon to do so as per clause 3.6.6 and 7 of ITB of the bid document.

I/We further agree for the deduction of 2.5% from the `Interim Payment/RA Bill' and up to a maximum of 2.5% of the contract value towards the ﷺPerformance Security Deposit', which will be returned as per the relevant clauses in the agreement

I/We will furnish the Performance Guarantee Bond as per the approved format, if our bid is accepted. Bid Security deposited shall be treated as security for the proper fulfilment of the same and shall execute an agreement for the work in the prescribed form. If I/We fails to do this or maintain a specified rate of progress (as specified in the Milestone details of contract data in the bid document), the performance guarantee(both treasury fixed deposit and irrevocable bank Guarantee) and Performance Security Deposit if any deducted from the RA Bills shall be forfeited to Government and fresh tenders shall be called for or the matter otherwise disposed off. If as a result of such measures due to the default of the Bidder to pay the requisite deposit, sign contract or take possession of the work any loss to Government due to the same will be recovered from me/us as arrears of revenue, but should it be a saving to Government. I/We shall have no claim whatever to the difference. Recoveries on this or any other account will be made from the sum that may be due to us on this or any or other subsisting contracts or under the Revenue Recovery act or otherwise the Government may decide

Local Self Government Department

I/We further agrees that, in the case of becoming the lowest bidder in this tender and in the event of failure on part of me/us to produce any of the original documents, or submit the performance guarantee, or enter into agreement with the first part within the specified time limit, the first part may take appropriate action as provided in the bid document. Recoveries on this or any other account will be made from the sum that may be due to us on this or any or other subsisting contracts or under the Revenue Recovery act or otherwise the Government may decide.

NOW THEREFOR IN THE PRESENCE OF WITNESS it is mutually agreed as follows.

1)The terms and conditions for the said contract having been stipulated in the said tender document and forms to which the I/We have agreed and a copy of which is here to be appended which forms the part of this agreement, it is agreed that the terms and conditions stipulated therein shall bind the parties to this agreement except to the extend to which they are abrogated or altered by express terms and conditions herein agreed to and in which respect the express provisions herein shall supersede those of said tender form.

2) The I/We hereby agreed and undertake to perform and fulfill all the operations and obligations connected with the execution of the said contract work .***Annual Plan-Kuttisseri Kidesseri road rennovation in ward 2 Arookutty GP-220/2026-27-General Civil Work*** (hereinafter the name of the work) if awarded in favour of the me/us.)

3)If the Bidder does not come forward and to execute the original agreement after the said work is awarded and selection notice issued in his favour or commits breach of any of the conditions of the contract as stipulated in clause of the notice inviting tenders as quoted above, within the period stipulated then the Government may rearrange the work other wise or get it done departmentally at the risk and the cost of the Bidder and the loss so sustained by the Government can be realized from the Bidder under the Revenue recovery Act as if arrears of land revenue as assessed quantified and fixed by an adjudicating authority consisting of the Secretary Public works, Chief Engineer (Admn) or any other officer or officers authorized by Government in this behalf, taking into consideration the prevailing P.W.D rates and after giving due notice to the Bidder. The decision taken by such authority officer or officers shall be final and conclusive and shall be binding on the Bidder.

4) The Bidder further agrees that any amount found due to the Government under or by virtue of this agreement shall be recoverable from the Bidder from his EMD and his properties movable and imovable as arrears of Land Revenue under the provision of the Revenue Recovery Act for the time being in force or in any other manner as the Government may deem fit in this regard.

5)The Bidder further assures that it is clearly understood that the settlement of claims either by part bills or by final bills will be made only according to the availability of budget provision and allotment of funds made with the Divisional officer in charge of the work under the respective heads of account in which the work is sanctioned and arranged and also subject to the seniority of such bills. No claims for interest or for damages whatsoever shall be made for the related settlement of claims of bills.

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Powered by Kerala State Government Department

IN WITNESS THERE OF SRI. . . . . .
. . . . . .
.(here enter the name of the officers of the Department)for on behalf of the Governor of Kerala State and . . . . . .
. . . . . .
. . . . . .the Bidder have set their hand on the day and year first above written Signed by Sri . . . . . .
. . . . . .(officer / Officers of Public Works Department)

In the presence of witnesses:
1.
2.

Signed and delivered by . . . . . .(Bidder) in the presence of
1.
2.

3. Format for Integrity Pact

(Certificate to be furnished by the bidder with the tender document downloaded from e-GP Website)

CERTIFICATE

I/We . . . . . undertake that the tender submitted by us is downloaded from e-GP Website (www.etenders.kereala.gov.in) and is same in content and form (verbatim), and any deviation, of detected, at any stage, would entitle the Employer to reject our bidding/ offer without assigning any reason or recourse to any penal action and would be legally binding on us.

Signature . . . . . (of Bidder)

Seal . . . . . .

4. Format for Affidavit

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Local self Government Department

AFFIDAVIT

I/We, ...
bidder/Partner/Legal Attorney/Accredited Representative of M/s . . . . . .
. . . . . .solemnly declare that:

1. I/We are submitting Tender for the Work . . . . . .
. . . . . against Tender Notice No . . . . . dated . . . . . .
2. None of the Partners of our firm is relative of employee of . . . . . .
. . . . . (Name of the Employer) who is involved with the arrangement and execution of this work.
3. All information furnished by us in respect of fulfilment of eligibility criteria and qualification information of this Tender is complete, correct and true.
4. All documents/credentials submitted along with this Tender are genuine, authentic, true and valid.
5. I/we undertake to deploy all plant and machinery, tools and tackles, man and materials etc. as required for execution of the work.
6. I/We hereby declare that I/We have perused in detail and examined closely the Central Public Works Department Specifications, Revised Kerala PWD Manual-2012, Kerala PWD Quality Manual and Laboratory Manual, before I/We submit the tender/ bid and I/We agree to be bound by and comply with all such specifications and requirements.
7. If any information and document submitted is found to be false/incorrect at any time, department may cancel my/our Tender and action as deemed fit may be taken against us,

including termination of contract, forfeiture of all dues including Earnest Money, revoking of Bank Guarantees and banning/delisting of our firm and all partners of the firm etc.

Signature of the Tenderer : . . . . . .

Dated . . . . . .

5. Form of Performance Guarantee by Bank

1) This deed of Guarantee made on the day of . . . . . (month & year) between Bank of . . . . . (hereinafter called the " Bank ") represented by . . . . . .(name of authorised signatory) of the one part, and the . . . . . . (tender inviting authority) (hereinafter called " the Employer ") represented by . . . . . .(name) of the other part.

2) Whereas Employer has awarded the contract for . . . . . .(Name of work as per Notice Inviting Tender) (hereinafter called the contract) to . . . . . .(Name of the Contractor) hereinafter called the " Contractor ".

3) AND WHEREAS the Contractor is bound by the said Contract to submit to the Employer aPerformance Guarantee for a total amount of . . . . . (Amount in figures and words).

4) Now we the Undersigned . . . . . (Name of the Bank and Branch) being fully authorized to sign and to incur obligations for and on behalf of and in the nameof . . . . . (Full name of Bank), hereby declare that the said Bank will guarantee the Employer the full amount of . . . . . (Amount in figures and Words) as stated above.

5) After the Contractor has signed the aforementioned Contract with the Employer, the Bank is engaged to pay the Employer, any amount up to and inclusive of the aforementioned full amount upon written order from the Employer to indemnify the Employer for any liability of damage

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